

OFFICE OF THE SECRETARY

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March 17, 2021

The Honorable Edward D. Webster
Judge of the Superior Court
County of Riverside
4100 Main Street
Riverside, CA 92501

Re: Alwin Jacob Smith
CDCR No: E64303
Case No: RIF091436
Date of Sentence: March 16, 2001 (Case Amended October 9, 2015)

Dear Honorable Edward D. Webster:

The purpose of this letter is to provide the court with the authority to resentence inmate Alwin J. Smith, E64303 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Smith has been found guilty of two Rules Violation Report but has remained disciplinary free since July of 2009. Inmate Smith is currently assigned as Food Manager Clerk and his supervisor notes he has demonstrated a great deal of knowledge and ability to complete all assigned tasks. He shows interest and participates in the kitchen work extensively. He is respectful to staff and inmates. Inmate Smith also participates in Celebrate Recovery. Smith has received numerous certificates and laudatory chronos from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

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Having reviewed the enclosed documentation it appears that inmate Smith's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable John W. Vineyard, Presiding Judge
Riverside County District Attorney's Office
Riverside County Public Defender's Office